



AGREEMENT NO: USPR23193
AGREEMENT DATE: 2025-08-11

US PRODUCER PROPRIETARY PLANT LEASE AND

LICENSE AGREEMENT – STONE FRUIT

**Between SUN WORLD INTERNATIONAL, LLC and ACGRMIX3
Company, LLC**



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This **PRODUCER PROPRIETARY PLANT LEASE AND LICENSE AGREEMENT** (the “Agreement”) is effective by and from the Effective Date as set out in Schedule 1 by and between **SUN WORLD INTERNATIONAL, LLC**, a Delaware limited liability company, organized under the laws of the United States of America (“USA”) (“SUN WORLD”) and the **AUTHORIZED PRODUCER** as set out in Schedule 1. SUN WORLD and AUTHORIZED PRODUCER may be referred to individually as a “Party” and collectively as the “Parties”.

BACKGROUND

- A** SUN WORLD is the owner of all Proprietary Property Rights (defined below) to the Sun World Cultivars (defined below), (including but not limited to plant patents, plant variety or plant breeders’ rights or other protective rights), and as such claims the exclusive right to control and regulate the growing, reproduction and distribution of such Sun World Cultivars and the fruit produced therefrom (“Proprietary Fruit”);
- B** SUN WORLD has established a global fruit production program for its Sun World Cultivars which is comprised of qualified producers collectively growing the Sun World Cultivars and licensed distributors marketing and distributing the Proprietary Fruit grown from the Sun World Cultivars using SUN WORLD privately owned and internationally recognized trademarks (such trademarks shall be referred to, individually and collectively, as the “Sun World Trademark(s)”);
- C** SUN WORLD has granted authorization in the Production Territory to: (1) a commercial nursery or nurseries to propagate and distribute various plants of the Sun World Cultivars to Producers under a nursery services agreement (“Licensed Nursery”); and (2) fruit distributors to market (and use the Sun World Trademark(s) for marketing and identifying) the Proprietary Fruit produced from the Sun World Cultivars grown pursuant to this Agreement (“Licensed Distributor”). Such authorizations are subject to various conditions and in accordance with other instructions that may be issued by SUN WORLD;
- D** AUTHORIZED PRODUCER declares itself to be in possession of all assets and facilities, technical expertise and permits necessary for the whole fulfillment of each and any obligation arising out of or in connection to this Agreement and therefore desires authorization from SUN WORLD to (1) lease and thereafter grow the Leased Plants on the “Land” (defined below); and (2) supply Licensed Distributor(s) with Proprietary Fruit to market and distribute.

NOW THEREFORE, incorporating by this reference the foregoing Background, the Parties agree as follows:

DEFINITIONS



“Affiliate” - means any person or entity controlled by or which controls the AUTHORIZED PRODUCER or is controlled by the same person as controls the AUTHORIZED PRODUCER. “Controlled” and “controls” means a) direct or indirect ownership of more than fifty (50) percent of the capital of the entity; b) owns, directly or indirectly, at least fifty percent (50%) or more of the stock or shares entitled to vote for the election of the board of directors or other governing body of the entity, or direct or indirect ownership of more than fifty (50) percent of the voting rights to vote on or direct the affairs of such entity. A reference to a person or entity includes an individual, partnership, firm, company, body corporate, corporation, association, trust, estate, state, government or agency thereof, municipal or local authority and any other entity, whether incorporated or not (in each case whether or not having a separate legal personality).

“Effective Date” - means the date that this Agreement becomes effective as set out in Schedule 1.

“Fresh Market Fruit” - means all grade fruit sold for fresh consumption meeting or exceed at least US#1 and US#2, and excludes fruit sold for juice, processing, freezing and raisins.

“Land” - means the specific real property owned or leased by AUTHORIZED PRODUCER within the Production Territory and described in Annex “B” (as amended by Sun World from time to time at its sole discretion), on which the Leased Plants will be planted and grown.

“Leased Plants” - means the actual individual plants or trees of any Sun World Cultivar, (including without limitation any buds, scions, tissues, sports, stocks, mutants and progeny that comprise or incorporate any of the Sun World Cultivar(s) and any subsequent asexual propagating materials arising from the growth or culture of the Leased Plants), that are owned by SUN WORLD and leased to AUTHORIZED PRODUCER under this Agreement and are planted as authorized under this Agreement on the Land, received from SUN WORLD or Licensed Nursery.

“Licensed Distributor” - means any entity or person in the Production Territory who has entered into a distribution agreement with SUN WORLD authorizing the marketing and distribution of Proprietary Fruit grown by a Producer authorized by SUN WORLD, and that is listed in Annex “E” (as amended in writing by SUN WORLD, from time to time, as needed to reflect currently available Licensed Distributors in the Production Territory).

“Licensed Nursery” - means any entity or person in the Production Territory who has entered into a Nursery Services Agreement with SUN WORLD authorizing the propagation of Sun World Cultivars and thereafter causes the distribution of a finished plant of such propagation activity in the Production Territory to a Producer authorized by SUN WORLD, and that is listed in Annex “E” (as amended in writing by SUN WORLD, from time to time, as needed to reflect currently available Licensed Nurseries in the Production Territory).

“Licensed Distributor” – means any entity or person in the Production Territory who has entered into a Proprietary Fruit Distribution License Agreement with SUN WORLD authorizing the marketing and distribution of Proprietary Fruit grown by a Producer authorized by SUN WORLD and that is listed in Annex “E” (as amended by SUN WORLD from time to time).

“Producer(s)” - means any entity or person in the Production Territory who grows commercially the same species of varieties as the Sun World Cultivars.



“Production Territory” - means the territory or territories where the Land is located, as set out in Schedule 1.

“Proprietary Fruit” - means the fruit produced from any Sun World Cultivar and/or Leased Plant respectively shown in Annex “A” and Annex “B” (each as amended in writing by SUN WORLD, from time to time, as needed to reflect the current list of Sun World Cultivar(s) licensed, as well as the quantity of Supplied Plant(s) for AUTHORIZED PRODUCER’s use) and grown in the Production Territory.

“Proprietary Property Rights” - means SUN WORLD’s equitable, intellectual property, personal property and confidential information rights to the following: (1) the Sun World Cultivar(s) bred, developed and owned by SUN WORLD, including but not limited to personal ownership of the Leased Plants, applications or issued Plant Patents, Utility Models, Plant Breeder’s Rights, Plant Variety Rights or other statutory protection mechanisms that have been or may be obtained, whether specifically or by operation of law, with respect to the Sun World Cultivars and Leased Plants or their respective materials that are subject to this Agreement; and (2) the Sun World Trademark(s) used to identify the Proprietary Fruit produced from the Sun World Cultivars and/or Leased Plants.

“Qualifying Fruit” - means all Proprietary Fruit grown by AUTHORIZED PRODUCER in the Production Territory that meets SUN WORLD’s quality specifications described in Annex “D” (as amended in writing by SUN WORLD, from time to time, as needed to meet governmental and/or market requirements, as well as to reflect the current set of quality specifications for use of the Sun World Trademark(s) with the corresponding Sun World Cultivar(s)) which a Licensed Distributor markets and distributes. All Qualifying Fruit must be sold and distributed by Licensed Distributor using the Sun World Trademark(s) unless otherwise agreed in writing with SUN WORLD.

“Sun World Cultivar(s)” - means the certain plant cultivars listed in Annex “A”, including without limitation any buds, scions, tissues, plants (including without limitation the Leased Plants), propagating materials, sports, stocks, mutants and progeny that are comprised of or incorporate any plant cultivar listed in Annex “A”, and any subsequent asexual propagating materials arising from the growth or culture of any of the foregoing (including but not limited to prunings).

“Sun World Trademark(s)” - means any trademark or trademarks owned by SUN WORLD and described in Annex “A” that are used to identify the Proprietary Fruit produced from any of the Sun World Cultivars and/or Leased Plants respectively shown in Annex “A” and Annex “B”.

AGREEMENT

1 GRANT

- 1.1 Subject to the terms of this Agreement, SUN WORLD leases the Leased Plants to AUTHORIZED PRODUCER, and gives permission to AUTHORIZED PRODUCER to: (a) plant and thereafter grow such Leased Plants on the Land only, and in the quantities described in Annex “B”; and (b) harvest, sell or otherwise provide to a Licensed Distributor all of the Proprietary Fruit produced from such Leased Plants grown pursuant to this Agreement. AUTHORIZED PRODUCER leases the Leased Plants from SUN WORLD and obtains no ownership of them and acknowledges such lease, authorization and grant pursuant to this Article 1 is subject to the terms and conditions set



out in this Agreement and is specifically limited to the Sun World Cultivar(s) shown in Annex “A” and the Land described in Annex “B”. As a condition to the effectiveness and before execution of this Agreement, AUTHORIZED PRODUCER undertakes to provide a legal description and precise address of the Land with GPS coordinates and a map of the Land, indicating the location of the Land where the Leased Plants are to be planted for use in Annex “B”.

2 OBTAINING, PLANTING, AND HARVESTING LEASED PLANTS

- 2.1 For all Leased Plants received from SUN WORLD or a Licensed Nursery, AUTHORIZED PRODUCER agrees to pay a one-time propagation fee in the amount per Leased Plant shown in Annex “A” (“Propagation Fee”). This one-time Propagation Fee must be paid to SUN WORLD or to the Licensed Nursery in one (1) installment before or upon receipt and delivery of the Leased Plants. AUTHORIZED PRODUCER acknowledges that a condition precedent to the effectiveness of this Agreement is the prepayment of the Propagation Fee by AUTHORIZED PRODUCER to SUN WORLD. The Propagation Fee does not include SUN WORLD’s or the Licensed Nursery’s own charges to AUTHORIZED PRODUCER for rootstock, nursery administration fees and/or propagation services. AUTHORIZED PRODUCER acknowledges that in paying such amounts to Licensed Nursery, AUTHORIZED PRODUCER does not purchase or buy the Leased Plants, nor does AUTHORIZED PRODUCER become the owner of the Leased Plants and their plant parts. All Leased Plants shall remain the sole and absolute personal and proprietary property of SUN WORLD.
- 2.2 Within thirty (30) days from receipt of the Leased Plants and once planting has been completed by AUTHORIZED PRODUCER, AUTHORIZED PRODUCER agrees to provide SUN WORLD with a written report describing the following information by Sun World Cultivar type: (a) the final number of Leased Plants planted by or for AUTHORIZED PRODUCER; (b) the total net number of acres of Leased Plants planted; and (c) a detailed map of the Land, showing the exact location of the Leased Plants on the Land and the dimensions of the plantation; and (d) a legal description, including full title details and exact location of the Land, with updated GPS coordinates. Once SUN WORLD has received the report, SUN WORLD will provide to AUTHORIZED PRODUCER a new Annex "B", essentially in the same form as that described in Annex "B". The new and subsequent Annex "B" shall by this reference be considered part of this Agreement.
- 2.3 AUTHORIZED PRODUCER will keep accurate records of the quantity of Leased Plants and planted hectares of Leased Plants growing on the Land and will submit to SUN WORLD annual reports for each calendar year following the Effective Date of this Agreement. Each annual report shall be presented to SUN WORLD by 1 January in each year and shall state the number of hectares then growing, the number of Leased Plants for each Sun World Cultivar, and the number of hectares of Leased Plants or specific Leased Plants discontinued or destroyed during the previous year. A sample of the annual report to be submitted is shown in Annex “C” (as amended in writing by SUN WORLD, from time to time, as needed to reflect current reporting requirements). Prior to destroying any of the Leased Plants, AUTHORIZED PRODUCER must notify SUN WORLD in writing of AUTHORIZED PRODUCER’s intent to destroy Leased Plants. AUTHORIZED PRODUCER acknowledges that upon SUN WORLD’s request, a representative of SUN WORLD must be present during the destruction of any of the Leased Plants.



- 2.4 In the event AUTHORIZED PRODUCER desires to replace any of the Leased Plants during the term of this Agreement, AUTHORIZED PRODUCER may obtain such replacement Leased Plants from SUN WORLD or a Licensed Nursery and may not obtain them from any third party. AUTHORIZED PRODUCER must first notify SUN WORLD in writing of its request to receive such replacement Leased Plants. Such written request to SUN WORLD for replacement Leased Plants must contain the following information: (a) quantity of Leased Plants required and desired date of plantings; (b) reason for replacement; and (c) a legal description, including full title details of the land where the Leased Plants will be re-planted. AUTHORIZED PRODUCER acknowledges and agrees any/all propagation, grafting and/or re-planting activity must first be authorized in writing by SUN WORLD. AUTHORIZED PRODUCER must pay Licensed Nursery for the cost of rootstock (when applicable), cost of propagating and nursery administration fee (to be negotiated with Licensed Nursery at the time the request is placed with SUN WORLD). Propagation Fee shall not be payable on approved replacements of Leased Plants within the first two years from the date of planting as listed in Annex "B. Annex "E" (as amended by Sun World from time to time at its sole discretion) includes a list of Licensed Nurseries.
- 2.5 AUTHORIZED PRODUCER agrees that no additional or other SUN WORLD Leased Plants will be in AUTHORIZED PRODUCER's possession and growing on the Land other than those listed in Annex "B". If AUTHORIZED PRODUCER breaches this restriction and creates or causes the creation of plants of any Sun World Cultivars, such plants shall be the property of SUN WORLD and shall be subject to all of SUN WORLD's Proprietary Property Rights and all terms and conditions described in this Agreement. To give effect to this Agreement, AUTHORIZED PRODUCER irrevocably agrees to assign, assigns and transfers all proprietary rights in any such plants to SUN WORLD and agrees to execute all such documents that are necessary or desirable to confirm such ownership. AUTHORIZED PRODUCER acknowledges SUN WORLD has not granted AUTHORIZED PRODUCER any rights to propagate, create or reproduce any of the Sun World Cultivars or Leased Plants and such authorization is specifically withheld from this Agreement. Violation of this Section 2.5 will subject AUTHORIZED PRODUCER to liability for the infringement of SUN WORLD's Proprietary Property Rights and give SUN WORLD a right to immediately terminate this Agreement.
- 2.6 AUTHORIZED PRODUCER acknowledges and agrees that it has planted the Leased Plants for the sole purpose of the performance of this Agreement and AUTHORIZED PRODUCER does not intend to plant the Leased Plants as a permanent adherence to the Land. Further, AUTHORIZED PRODUCER shall take all reasonable precautions to ensure that third parties are aware that the Leased Plants shall at all times remain the exclusive personal and proprietary property of SUN WORLD.
- 2.7 AUTHORIZED PRODUCER agrees to keep the Land and in particular the area or areas where the Leased Plants and/or Sun world Cultivars are located, reasonably protected against intrusion by third parties and adopt security measures that are likely to keep the Leased Plants and/or Sun World Cultivars secure against theft or misappropriation and in AUTHORIZED PRODUCER's possession and control.
- 2.8 AUTHORIZED PRODUCER agrees that it shall take such steps as may be necessary or appropriate to cause the Leased Plants to produce Proprietary Fruit on the Land. Without limiting the other terms of this Agreement, AUTHORIZED PRODUCER shall:



- (a) cultivate and grow the Leased Plants on the Land in the quantities set out in Annex “B” of this Agreement by carrying on all necessary and appropriate horticultural practices;
- (b) grow Proprietary Fruit on the Leased Plants;
- (c) harvest Proprietary Fruit from the Leased Plants;
- (d) separate Proprietary Fruit meeting SUN WORLD’s quality specifications from Proprietary Fruit that does not meet SUN WORLD’s quality specifications; and
- (e) sell through a Licensed Distributor all Proprietary Fruit.

3 NON-PROPAGATION/OWNERSHIP OF RIGHTS

- 3.1 AUTHORIZED PRODUCER agrees to respect SUN WORLD’s Proprietary Property Rights to and in all of the Sun World Cultivars shown in Annex “A” and the Sun World Trademark(s) described in Annex “A”. AUTHORIZED PRODUCER further agrees that it shall not, whether directly or indirectly challenge SUN WORLD’s ownership of the Proprietary Property Rights nor assist any other person to so do. If AUTHORIZED PRODUCER challenges, or causes another to challenge, any of said Proprietary Property Rights, in any way, whether directly or indirectly, SUN WORLD may terminate this Agreement.
- 3.2 AUTHORIZED PRODUCER agrees that it shall not propagate, top work, graft or reproduce any of the Leased Plants and/or the Sun World Cultivars without SUN WORLD’s prior written authorization, nor shall it be a party to the propagation or reproduction of any Leased Plants and/or Sun World Cultivars by others either locally or internationally. AUTHORIZED PRODUCER further agrees that it shall not sell or give away any of the plant material of any Leased Plants and/or Sun World Cultivars, except Proprietary Fruit pursuant to this Agreement, and undertakes that all cuttings resulting from pruning shall be properly destroyed, or otherwise disposed of, and not removed from the land where the Leased Plants and/or Sun World Cultivars are grown by AUTHORIZED PRODUCER. AUTHORIZED PRODUCER will take precautions and shall inform all of its employees and contract laborers of the need to strictly follow the pruning practices outlined in Annex “H” (as amended in writing by SUN WORLD, from time to time, as needed to reflect current pruning and handling practices for the Sun World Cultivars). AUTHORIZED PRODUCER further agrees that it shall not be entitled to use any Leased Plants and/or Sun World Cultivars for the development (breeding) of a different variety or assist any third party in using any of the Leased Plants and/or Sun World Cultivars in the development (breeding) of a different variety.
- 3.3 Any mutations or sports derived from the Leased Plants and/or Sun World Cultivars planted, held or owned by or on behalf of AUTHORIZED PRODUCER shall be considered as an improvement or new use of SUN WORLD’s personal property and licensed technology and shall be held in trust by AUTHORIZED PRODUCER for SUN WORLD. AUTHORIZED PRODUCER acknowledges it must notify SUN WORLD immediately and must receive written permission from SUN WORLD to grow such personal property. At SUN WORLD’s request, AUTHORIZED PRODUCER shall



forthwith assign to SUN WORLD all property rights in any such mutations or sports as well as all world-wide industrial and intellectual property rights in any such improvements and execute all such documents as are necessary to effect such assignment. Violation of this Section 3.3 will subject AUTHORIZED PRODUCER to liability for any direct or consequential losses or damages SUN WORLD may suffer in the Production Territory or any other country.

- 3.4 The Parties recognize and expressly acknowledge the following facts: (a) SUN WORLD is the owner of each and every individual Leased Plant and/or Sun World Cultivars that are the subject of this Agreement; (b) nothing in this Agreement is intended to or does in any way transfer any rights of ownership over plants or offspring of the Leased Plants and/or Sun World Cultivars; (c) ownership rights in personal property do not expire, and are only modified through legitimate alienation of such property by the rightful owner; (d) SUN WORLD is also the owner of certain temporary intangible intellectual property relating to the Leased Plants and/or Sun World Cultivars, which intellectual property rights will ultimately expire; (e) expiration, cancellation, withdrawal or abandonment of intangible intellectual property rights does not in any way alter SUN WORLD's permanent ownership of its tangible, physical property, namely each and every individual plant of the Leased Plants and/or Sun World Cultivars; (f) intellectual property protection of the Leased Plants and/or Sun World Cultivars is advantageous to both Parties, but is not the sole basis of this Agreement; this Agreement is based on the value of each Leased Plant, which is the tangible personal property of SUN WORLD. To the extent that this Agreement recites a license or authorization under any plant patents, plant variety or plant breeders' rights, such a license or authorization is incidental to the central purpose of this Agreement; and (g) it is not possible legitimately to propagate or possess any of the Leased Plants and/or Sun World Cultivars without access to the personal property of SUN WORLD authorized by SUN WORLD.
- 3.5 Notwithstanding SUN WORLD's ownership provisions in Section 3.4 and provided the AUTHORIZED PRODUCER complies with the terms and conditions of this Agreement, SUN WORLD will have no rights to affect or control the day to day cultivation of the Leased Plants forming the subject of this Agreement. AUTHORIZED PRODUCER may decide at any time during the term of this Agreement to discard or pull out the Leased Plants forming the subject of this Agreement provided that: (a) AUTHORIZED PRODUCER first notifies SUN WORLD in writing of its desire to discard or pull out any Leased Plants; and (b) such Leased Plants, excluding rootstocks which are not of the Sun World Cultivars, are destroyed; and (c) upon SUN WORLD's request, a representative of SUN WORLD is present before and during the destruction of the Leased Plants. SUN WORLD will have no claim for damages for lost income in respect of Leased Plants so destroyed.
- 3.6 AUTHORIZED PRODUCER agrees to identify, label and use on any written documents the correct and proper Sun World Cultivar name for each type of Leased Plants as indicated and listed in Annex "A" of this Agreement (in accordance with such Annex) and further agrees that it will not use any Sun World Cultivar name, or any names, words or marks substantially identical or deceptively or misleadingly or confusingly similar to them, in connection with any other varieties or products other than for the Sun World Cultivars and/or Leased Plants grown pursuant to this Agreement.

4 MARKETING AND DISTRIBUTION; USE OF SUN WORLD TRADEMARKS



- 4.1 AUTHORIZED PRODUCER acknowledges that all Proprietary Fruit produced from the Leased Plants will be distributed only through a Licensed Distributor. The marketing and distribution of AUTHORIZED PRODUCER's Proprietary Fruit other than by a Licensed Distributor shall give SUN WORLD the right to the immediately terminate this Agreement by written notice and withdraw of all authorizations and grants given by SUN WORLD in Article 1. For the avoidance of doubt, AUTHORIZED PRODUCER acknowledges that it is entitled to have the Proprietary Fruit marketed and distributed by multiple Licensed Distributors.
- 4.2 SUN WORLD grants to AUTHORIZED PRODUCER a non-exclusive, non-transferable license to use the Sun World Trademark(s) described in Annex "A" on Proprietary Fruit that is grown pursuant to this Agreement, provided that it meets the quality specifications listed in Annex "D" (as amended from time to time by SUN WORLD in writing at its sole discretion). Such license is subject to the terms of this Agreement and AUTHORIZED PRODUCER shall have no right to use the Sun World Trademark(s), except as provided in this Agreement. AUTHORIZED PRODUCER further agrees that all of its use of any of the Sun World Trademark(s) shall also inure to the benefit of SUN WORLD.
- 4.3 AUTHORIZED PRODUCER may only use the Sun World Trademark(s) on the carton or other packaging of Proprietary Fruit that it packs and that meets SUN WORLD's quality specifications listed in Annex "D". Each carton or other packaging of such Proprietary Fruit, subject to the terms of this Agreement, shall bear the Sun World Trademark(s) and must be marked or stamped in the following format for the relevant Sun World Trademark(s) and Sun World Cultivars:

*****sample*****

"HONEYCOT®" brand (cv. Suapriseven) apricots

Grown, sold and distributed under license from Sun World International, LLC"

- 4.4 Unless otherwise agreed by the Parties, Proprietary Fruit that does not meet SUN WORLD's quality specifications listed in Annex "D" (as amended from time to time by SUN WORLD in writing at its sole discretion) must be sold without any reference to the Sun World Trademark(s) appearing on any cartons, containers, packaging materials or elsewhere; provided however AUTHORIZED PRODUCER agrees that all cartons, containers or packaging referencing the Proprietary Fruit must be identified using the correct Sun World Cultivar name shown in Annex "A" to this Agreement and at all times AUTHORIZED PRODUCER must comply with all other applicable governmental labeling requirements.
- 4.5 Upon reasonable notice to AUTHORIZED PRODUCER, SUN WORLD or its designated agent reserves the right at all times to inspect and take genetic and other samples of the Proprietary Fruit growing on the Land or at packing or at shipping point, in order to verify that the Proprietary Fruit meets the minimum quality specifications as specified in this Agreement.
- 4.6 AUTHORIZED PRODUCER acknowledges that SUN WORLD has expended considerable sums in establishing a worldwide reputation (including a reputation in the Production Territory) for the Proprietary Fruit produced from Sun World Cultivars and that are sold using Sun World Trademark(s). Accordingly, AUTHORIZED PRODUCER agrees that it will not use any of the Sun World Trademark(s), or any names, words or marks substantially identical or deceptively or



misleadingly or confusingly similar to them, in connection with any varieties or products other than as provided in this Agreement.

- 4.7 Except as for the limited purpose of the performance of any duties arising out of this Agreement, AUTHORIZED PRODUCER undertakes not use any of the Sun World Trademark(s) as a trade name, service mark, company name, business name, trade style, fictitious name, doing business as name, domain name, social media name or web-site address and that any unauthorized use of any of the Sun World Trademark(s) shall also inure to the benefit of SUN WORLD and that such use shall not give to AUTHORIZED PRODUCER any right, title, or interest in the Sun World Trademark(s). AUTHORIZED PRODUCER agrees to assign, and does hereby assign, to SUN WORLD, any and all right, title, and interest which it may obtain in the Sun World Trademark(s) through such unauthorized use and execute all such documents as are necessary to effect such assignment.
- 4.8 AUTHORIZED PRODUCER agrees that it will not seek or obtain registration of any of the Sun World Trademark(s), or of any names, words or marks substantially identical or deceptively or misleadingly or confusingly similar to any of the Sun World Trademark(s) or participate directly or indirectly in such registration without SUN WORLD's written permission which may be withheld in SUN WORLD's absolute discretion.
- 4.9 SUN WORLD, or a representative of SUN WORLD, may, at all reasonable business hours and under twenty-four (24) hours prior written, electronic or telephone notice, inspect all operations and facilities of AUTHORIZED PRODUCER with respect to this Agreement, including entering on to the Land to inspect the Leased Plants. SUN WORLD or its representatives may enter the Land to perform its own GPS mapping of the location of the Leased Plants at any time with or without the permission of AUTHORIZED PRODUCER. AUTHORIZED PRODUCER will cooperate fully in this regard.
- 4.10 AUTHORIZED PRODUCER agrees to provide to SUN WORLD in writing the name of the Licensed Distributor or Licensed Distributors who will be marketing and distributing the Proprietary Fruit grown by AUTHORIZED PRODUCER. If the AUTHORIZED PRODUCER changes Licensed Distributor it shall notify SUN WORLD forty-five (45) days prior to the harvest commencing the name of the new Licensed Distributor. In addition, AUTHORIZED PRODUCER agrees forty-five (45) days prior to harvest of each year during the term of this Agreement to provide its Licensed Distributor or Licensed Distributors with an estimate of the anticipated kilograms of Proprietary Fruit to be harvested and sold by them for the upcoming season. The information is to be delivered to both SUN WORLD and Licensed Distributor(s) in the form of Annex "F" (as amended in writing by SUN WORLD from time to time at its sole discretion). In the event that following the harvest, the number of kilograms of Proprietary Fruit actually harvested and sold is materially different from the estimate, the AUTHORIZED PRODUCER shall advise SUN WORLD of the reason for such a difference.
- 4.11 AUTHORIZED PRODUCER acknowledges the importance of and agrees, as an integral part of this Agreement, to participate in SUN WORLD's global production and marketing program, to comply with SUN WORLD's established program of managed production levels and/or preliminary productions thresholds for each of the Sun World Cultivars. AUTHORIZED PRODUCER acknowledges SUN WORLD's program consists of monitoring market demands



and/or fruit market trends, and with AUTHORIZED PRODUCER's Licensed Distributor's in-put, shall include, but not be limited to, using existing market information, determining Cultivar characteristics (e.g. size data, flavor profiles, maturity and timing characteristics), average price per carton and percentage of market share each Cultivar maintains, and any other information to the extent that such information is reasonably available.

- 4.12 AUTHORIZED PRODUCER acknowledges that Licensed Distributors are obligated to provide written periodic reports to SUN WORLD on the quality of Proprietary Fruit and compliance with SUN WORLD's quality specifications for the use of the Sun World Trademarks and to provide sales reports to SUN WORLD on a block by block basis (Block Level Reporting) and agrees to cooperate with the Licensed Distributor and provide such information to Licensed Distributor to enable the Licensed Distributor to satisfy these obligations.
- 4.13 AUTHORIZED PRODUCER will perform all of its obligations and exercise the rights granted to it under this Agreement strictly in compliance with all applicable laws and regulations, including but not limited to all food safety laws and regulations on legal limits of the maximum amount of pesticide residue present in the Proprietary Fruit.

5 FRUIT FEES

- 5.1 During the term of this Agreement, AUTHORIZED PRODUCER will pay to SUN WORLD an annual lease fee and a fruit royalty for all Fresh Market Fruit that is sold by Licensed Distributor (such annual lease fee and fruit royalty shall jointly be referred to as the "Fruit Fee"). All Fruit Fees payable by AUTHORIZED PRODUCER will, unless direct payments to SUN WORLD by AUTHORIZED PRODUCER are first authorized by SUN WORLD, be paid to SUN WORLD by the Licensed Distributor on behalf of the AUTHORIZED PRODUCER. AUTHORIZED PRODUCER agrees and acknowledges that the Licensed Distributor is authorized by AUTHORIZED PRODUCER to so pay SUN WORLD the Fruit Fees on behalf of AUTHORIZED PRODUCER.
- 5.2 The Fruit Fee payments specified in Section 5.1 for Fresh Market Fruit sales shall be calculated as set out in Annex "A". The Fruit Fee shall be paid on all Fresh Market Fruit which is, directly or indirectly sold, assigned, transferred or otherwise disposed of in, or for resale or consumption, by a Licensed Distributor. Upon the date of expiration of the issued Plant Patent, Utility Model, Plant Breeder's Rights, Plant Variety Rights and other statutory protection mechanisms that have been obtained or may be obtained in the Production Territory for a Sun World Cultivar that is the subject of this Agreement and that is shown in Annex "A" as the "Transition Date", SUN WORLD agrees to change the above Fruit Fee payable to SUN WORLD for such Sun World Cultivar to the "Fee Upon Transition" rate shown in Annex "A".

6 PAYMENTS TO SUN WORLD; ACCOUNTING RECORDS

- 6.1 All Fruit Fee payments on behalf of AUTHORIZED PRODUCER will be paid to SUN WORLD by its Licensed Distributor, unless otherwise agreed by SUN WORLD.



- 6.2 AUTHORIZED PRODUCER shall prepare and keep full, complete and proper records of the Leased Plants growing on AUTHORIZED PRODUCER's land, or under its control, the Proprietary Fruit harvested and sold by AUTHORIZED PRODUCER, and the prices received on such sale, during the term of this Agreement. AUTHORIZED PRODUCER shall retain such records for a period of seven (7) years after termination of this Agreement. SUN WORLD, or a representative of SUN WORLD, may, at all reasonable business hours and with reasonable notice to AUTHORIZED PRODUCER, enter the offices or premises of AUTHORIZED PRODUCER to inspect and take copies of all such records and supporting data. SUN WORLD shall retain the right at any and at all times to appoint an independent third-party auditor to audit the above records and supporting data; provided, however, that SUN WORLD shall cause any such audit for a given season to commence within two (2) years of the end of such season.

7 TECHNICAL SUPPORT; WARRANTIES

- 7.1 From time to time, as requested by AUTHORIZED PRODUCER, information will be made available to AUTHORIZED PRODUCER on general Sun World Cultivar cultural practices including but not limited to access to SUN WORLD's web-site, production and yield data, fertilizer regimes, pruning practices, nutritional needs of the vine or tree, water management practices, pest management regimes, the optimum use of growth hormones, canopy management, girdling practices, overall vine and/or tree management and harvesting procedures. AUTHORIZED PRODUCER is free to accept, reject and modify any technical advice offered to suit their needs. SUN WORLD may, at its option, modify, supplement, or discontinue one or more of the foregoing services. AUTHORIZED PRODUCER agrees to indemnify, keep indemnified and hold SUN WORLD, its parent company, its directors, employees, officers, shareholders, agents and representatives harmless from any claims, losses, liabilities, costs and expenses, including attorneys' fees, from any causes of action by agents, third parties or any persons whatsoever, for any losses resulting from the implementation by AUTHORIZED PRODUCER of the technical assistance given by SUN WORLD. AUTHORIZED PRODUCER agrees that SUN WORLD is the owner of all information developed by SUN WORLD with respect to the Sun World Cultivars, including but not limited to technical support disclosed to AUTHORIZED PRODUCER, that such information is proprietary and confidential, and AUTHORIZED PRODUCER further agrees to hold all of SUN WORLD's confidential information (whether disclosed to AUTHORIZED PRODUCER by SUN WORLD or developed by AUTHORIZED PRODUCER) in trust and in confidence for SUN WORLD and not to disclose any part of it, whether directly or indirectly, to any third party or to use it except as specifically licensed by this Agreement, or otherwise allow it to be used in any manner to the detriment or disadvantage of SUN WORLD. This provision shall survive the Agreement and shall remain in full force and effect and be binding upon the Parties even after the expiry or termination of this Agreement.
- 7.2 To the extent permissible by law, AUTHORIZED PRODUCER acknowledges that SUN WORLD does not grant any warranties or make any production or other representations and is not liable to the AUTHORIZED PRODUCER for negligence or otherwise in connection with this Agreement, including in relation to: (a) the merchantability, suitability, fitness or other characteristics of the Sun World Cultivar and/or Leased Plants or the Proprietary Fruit for any particular purposes, including planting, growing or harvesting by the AUTHORIZED PRODUCER; (b) the likelihood of success in planting, growing or harvesting the Leased Plants or the Proprietary Fruit in any



particular area, soil type or climate; (c) the accuracy, quality, safety, efficiency, suitability or other characteristics of any fertilizer regimes, pruning practices, water management practices, pest management regimes, canopy management, girdling practices, overall vine and/or tree management and harvesting procedures or other technical information provided to the AUTHORIZED PRODUCER by SUN WORLD; (d) market demand or market prices for the Proprietary Fruit; (e) any classification or failure to classify Proprietary Fruit as meeting SUN WORLD's minimum quality standards by SUN WORLD or any of its directors, officers, employees, contractors or agents; and (f) the validity or scope of SUN WORLD's Proprietary Property Rights in and to the Sun World Cultivars and Leased Plants.

8 TERM OF THIS AGREEMENT

The term of this Agreement will stay in force for the life of each of the specific Leased Plants shown in Annex "B", and as updated annually by planting information provided by AUTHORIZED PRODUCER in Annex "C", unless otherwise terminated as provided in this Agreement.

9 EVENTS OF TERMINATION

- 9.1 SUN WORLD will be entitled to terminate this Agreement by written notice to AUTHORIZED PRODUCER in the event that AUTHORIZED PRODUCER commits a breach of any of the terms or conditions of this Agreement and is notified of such breach by SUN WORLD and fails to remedy the breach within thirty (30) days of its receipt of a written notice calling upon AUTHORIZED PRODUCER to remedy the breach complained of.
- 9.2 In addition to the provision in Section 9.1, in the event AUTHORIZED PRODUCER: (i) fails to pay any amounts due and payable to SUN WORLD pursuant to any terms of this Agreement; (ii) has its exclusive possession of the Land terminated for any reason; (iii) breaches Sections 2.4, 3.1, 4.1, 10.3 or 10.10 of this Agreement; or (iv) commits an act of insolvency or is placed under a provisional or judicial management order, makes an assignment for the benefit of creditors, or fails to satisfy or take steps to have set aside any of the foregoing events, within seven (7) days after such event has come to its notice, any such event shall be grounds for immediate termination of this Agreement.
- 9.3 If AUTHORIZED PRODUCER or its affiliated entities (having majority ownership or control, or who majority own or control AUTHORIZED PRODUCER), and SUN WORLD are also parties to any other agreements in addition to this Agreement (including, without limit, proprietary fruit distribution license agreements, licensed producer agreements, licensed test grower agreements or other such agreements) and if SUN WORLD is entitled to terminate this Agreement or any other agreement to which AUTHORIZED PRODUCER or its related entities is a party then SUN WORLD may terminate the other agreements and this Agreement by written notice to AUTHORIZED PRODUCER with the termination being effective the same date as termination of the proprietary fruit distribution license agreement.
- 9.4 On termination of this Agreement whether for breach, by effluxion of time or otherwise, the following provisions will apply:



- 9.4.1 Any Propagation Fees and/or Fruit Fees due for the benefit of SUN WORLD shall become due and immediately payable by AUTHORIZED PRODUCER to SUN WORLD;
- 9.4.2 AUTHORIZED PRODUCER shall not produce, market, export, deal, dispose, sell, transfer, give away, assign any of the Sun World Cultivars, Leased Plants and/or the Proprietary Fruit;
- 9.4.3 Upon termination, and at AUTHORIZED PRODUCER's sole cost and expense and in the presence of SUN WORLD or its designated agent if so desired by SUN WORLD, AUTHORIZED PRODUCER shall remove and destroy all Leased Plants. For the purposes of this Section SUN WORLD will be entitled to have all the Leased Plants removed or destroyed by the AUTHORIZED PRODUCER (whether or not the Leased Plants are attached to the Land) and AUTHORIZED PRODUCER agrees to detach, or procure the detachment of the Leased Plants from any land for the purposes of such removal or destruction. In the event the AUTHORIZED PRODUCER fails to comply with the obligation established in the previous sentence, SUN WORLD may choose at its sole discretion between demanding its compliance with the corresponding indemnification for the damages caused or the payment of a penalty amounting to US \$1,500 (One thousand and Five Hundred United States Dollars) for each Leased Plant without prejudice to any further damages which may be subsequently claimed;
- 9.4.4 Upon termination, whether for breach, by effluxion of time or otherwise howsoever, all rights of AUTHORIZED PRODUCER to use the Sun World Trademark(s) shall forthwith cease and AUTHORIZED PRODUCER shall immediately:
- (i) cease all use of the Sun World Trademark(s) and will not use any name, word or mark substantially identical or deceptively or misleadingly or confusingly similar thereto; and
 - (ii) delete any reference to the Sun World Trademark(s) from any advertising, promotional or directory materials, social media, websites, including any reference to having been previously an AUTHORIZED PRODUCER of SUN WORLD with respect to the Sun World Trademark(s).
- 9.4.5 In the event AUTHORIZED PRODUCER is also a Licensed Distributor, and this Agreement is terminated by SUN WORLD because of a breach or default by AUTHORIZED PRODUCER, SUN WORLD reserves the right to terminate the AUTHORIZED PRODUCER's licensed distributor agreement.
- 9.4.6 In the event of a termination of this Agreement for any reason, the Parties agree to meet regarding other procedures or courses of action SUN WORLD will take to eliminate the impact of termination of this Agreement, including when applicable Proprietary Fruit not harvested or sold, and any remaining inventory of packaging cartons, taking into account all circumstances surrounding such cause or event.
- 9.5 The rights set out herein are cumulative and shall be in addition to SUN WORLD's rights at law as against AUTHORIZED PRODUCER and SUN WORLD may pursue any and all legal remedies



against AUTHORIZED PRODUCER, including but not limited to, for infringement of SUN WORLD's rights.

10 GENERAL PROVISIONS

- 10.1 Notices. Any notices required to be sent to a Party to this Agreement shall be in writing and either (1) sent by e-mail to the relevant e-mail address set out in Schedule 1 and shall be effective within 24 hours of sending (unless a delivery failure message is received) or (2) delivered by registered mail to a Party's registered mail address or to the relevant physical address set out in Schedule 1 by an internationally recognized courier service and shall be effective when delivered.
- 10.2 Infringement. AUTHORIZED PRODUCER agrees to cooperate with SUN WORLD in any proceedings instituted by SUN WORLD in respect of the protection of its Proprietary Property Rights (including but not limited to PBR rights and trademark rights). AUTHORIZED PRODUCER agrees to notify SUN WORLD promptly of any known propagation, sale or use of the Sun World Cultivars, Proprietary Fruit and/or Sun World Trademark(s) by growers, nurseries or persons not duly authorized to propagate, use or distribute such Sun World Cultivars, Proprietary Fruit and/or Sun World Trademark(s). Notification of such infringement shall include all details known to AUTHORIZED PRODUCER, such as name and address of the alleged infringer, location, size of plantings, or any other information that would assist SUN WORLD to investigate and determine or evaluate such infringement. SUN WORLD has the exclusive right to control and bring any legal action against any infringer and AUTHORIZED PRODUCER will not take any action against infringers of SUN WORLD's Proprietary Property Rights unless first authorized by SUN WORLD in writing to do so. SUN WORLD shall be entitled to all damages and profits arising from any action for infringement of its Proprietary Property Rights. In the event any issued Plant Patent, Utility Model, Plant Breeder's Rights, Plant Variety Rights and other statutory patent-like protection mechanisms that have been obtained or may be obtained in the Production Territory for a Sun World Cultivar that is the subject of this Agreement and that is shown in Annex "A" is declared invalid or unenforceable by a court of competent jurisdiction after all appeals have been completed, SUN WORLD agrees to change the Fruit Fee payable to SUN WORLD for such Sun World Cultivar to the "Fee Upon Transition" rate shown in Annex "A".
- 10.3 Assignability. With SUN WORLD's prior written consent, which shall not be unreasonably withheld, AUTHORIZED PRODUCER is permitted to assign or otherwise transfer its rights and obligations under this Agreement to an Affiliate, provided such Affiliate signs a written acknowledgement accepting the rights and obligations under this Agreement. AUTHORIZED PRODUCER expressly agrees it will not assign or otherwise transfer or otherwise deal in any manner with this Agreement or any of its obligations or rights hereunder in whole or in part to any non-Affiliate, for any purpose whatsoever without the prior written consent of SUN WORLD (which consent may be withheld in the sole discretion of SUN WORLD), and it is understood and agreed that this Agreement and the authorizations contained in it are personal to AUTHORIZED PRODUCER. A change in ownership, management or control of the AUTHORIZED PRODUCER shall be deemed to be an assignment pursuant to this Section 10.3 and shall require the prior written consent of SUN WORLD. Any attempted assignment or transfer (whether voluntary, involuntary or by operation of law) without SUN WORLD's prior written consent, shall be invalid and ineffective and shall constitute a default and cause this Agreement to immediately terminate. SUN



WORLD may assign or otherwise transfer its rights and obligations under this Agreement at its sole discretion.

- 10.4 Heirs, Successors. Notwithstanding the provisions of Section 10.3, the Parties expressly agree that, in view of the specific set of skills, assets and capabilities by the AUTHORIZED PRODUCER, in case of AUTHORIZED PRODUCER's inability to fulfill its obligations pursuant to this Agreement, for any reason whatsoever and regardless any breach or other cause for termination, without SUN WORLD's written authorization, the Agreement shall be deemed as immediately terminated and shall not be binding on or inure to the benefit of any permitted heirs, executors, administrators, and successors of the AUTHORIZED PRODUCER.
- 10.5 Confidentiality. Both Parties acknowledge and understand that in the course of operating under this Agreement neither Party will disclose confidential information with respect to the other Party, except (a) as required by law or court order; (b) as necessary to enforce the terms of this Agreement or for the performance of a Party's duties under it; or (c) if the information enters the public domain, or becomes known to a party by other means which does not constitute a breach of this Agreement. AUTHORIZED PRODUCER agrees that SUN WORLD is the owner of all information developed by SUN WORLD with respect to the Sun World Cultivars and/or Leased Plants and or the Sun World Trademark(s) disclosed to AUTHORIZED PRODUCER, that such information is proprietary and confidential to SUN WORLD.
- 10.6 Certain Rules of Construction. Time is of the essence in this Agreement. Notwithstanding the fact that certain references elsewhere in this Agreement to acts required to be performed by AUTHORIZED PRODUCER omit to state that such acts shall be performed at AUTHORIZED PRODUCER's sole cost and expense, unless the text clearly states the contrary, each and every act to be performed or obligation to be fulfilled by AUTHORIZED PRODUCER pursuant to this Agreement shall be performed or fulfilled at AUTHORIZED PRODUCER's sole cost and expense. The captions, section numbers, and article numbers appearing in this Agreement are inserted only as a matter of convenience and in no way define, limit, construe, or describe the scope or intent of such articles of this Agreement, nor in any way affect this Agreement.
- 10.7 Enforceability. Failure by any of the Parties at any time to require performance by the other party of any provision of this Agreement shall in no way affect the full right to require such performance thereafter. The waiver by SUN WORLD of a breach of any term, covenant or condition contained in this Agreement shall not be treated as a waiver of such term, covenant or condition, or as a waiver of a future breach of the same or any other term, covenant or condition contained in this Agreement.
- 10.8 Severability. If any provision of this Agreement, or its application to any circumstance, is held by a court of competent jurisdiction to be invalid or unenforceable, then it shall be severed from this Agreement and all other provisions of this Agreement will continue in full force and effect and a suitable and equitable provision will be substituted for the invalid or unenforceable provision in order to carry out, so far as may be practical and permitted under applicable law, the purpose of this Agreement.
- 10.9 Entities. If at any time, during the term of this Agreement there is more than a single person or entity acting as AUTHORIZED PRODUCER under this Agreement, then all such persons or entities shall be jointly and severally liable for the performance of the duties, covenants and



obligations of AUTHORIZED PRODUCER under this Agreement. AUTHORIZED PRODUCER warrants that it is authorized and has the full legal capacity to execute this Agreement, which is a legal and binding agreement of AUTHORIZED PRODUCER enforceable against AUTHORIZED PRODUCER in accordance with its terms.

- 10.10 Land Ownership; Third Party Interests. AUTHORIZED PRODUCER warrants and represents that it is the owner of the Land or is otherwise in exclusive possession of the Land with the written authority of the landowner and prior to entering into this Agreement has either provided SUN WORLD with proof of ownership of the Land or written authority from the landowner as to its exclusive possession of the Land along with an irrevocable authority from the landowner to give effect to the provisions of this Section, on terms acceptable to SUN WORLD. AUTHORIZED PRODUCER warrants and represents that the description and data provided in Annex “B” is accurate. AUTHORIZED PRODUCER undertakes not to sell, transfer, dispose of or otherwise part with its legal or beneficial ownership or possession of the Land or any part of it where the Leased Plants are grown unless, at SUN WORLD’s option: (a) a new Producer Proprietary Plant Lease and License Agreement is entered into with SUN WORLD in respect of the Leased Plants substantially similar to this Agreement by the party who is to take legal or beneficial ownership or possession of the Land or any part of it; or (b) AUTHORIZED PRODUCER proves to the reasonable satisfaction of SUN WORLD that the Leased Plants have been destroyed. Notwithstanding the foregoing, AUTHORIZED PRODUCER agrees to provide its full cooperation and agrees to execute (and where applicable, procure execution by the landowner) all necessary and required documents provided by SUN WORLD that acknowledge SUN WORLD’s ownership of the Leased Plants, and/or Sun World Cultivars growing pursuant to this Agreement including, if required, granting a security interest in the Leased Plants and/or an encumbrance over the Land where the Leased Plants and/or Sun World Cultivars are located, for the benefit of SUN WORLD, securing SUN WORLD’s continuing ownership of the Leased Plants and/or Sun World Cultivars and SUN WORLD’s right to enter on the Land under the terms of this Agreement. In case the Land is leased, the AUTHORIZED PRODUCER is obliged to the punctual payment of the lease fee, as well as to the strict compliance of all his obligations as lessee. Failure to comply with the obligations as lessee entitles SUN WORLD to terminate this Agreement. AUTHORIZED PRODUCER agrees to execute and have the landowner (where the AUTHORIZED PRODUCER does not own the Land) and AUTHORIZED PRODUCER’s or landowner’s banking institution or lender execute the Agreement Regarding Leased Plants in Annex “G” in favor of SUN WORLD. The Land lease agreement signed between the Landlord and the AUTHORIZED PRODUCER shall mandatorily provide that upon termination of such agreement, for any cause whatsoever, prior to delivery of the Land to Landlord, the AUTHORIZED PRODUCER or the Landlord shall destroy the Leased Plants in the presence of a representative of SUN WORLD. If AUTHORIZED PRODUCER sells, transfers, disposes of or parts with legal or beneficial ownership or possession of, or any interest in any of the Land where the Leased Plants are grown in breach of this Section 10.10 of the Agreement, then without prejudice to any other rights or remedies available to SUN WORLD, SUN WORLD may immediately terminate this Agreement, and AUTHORIZED PRODUCER shall immediately pay to SUN WORLD by way of penalty the sum of US \$1,500 (one thousand and five hundred United States Dollars) for each Leased Plant without prejudice to any further damages which may be subsequently claimed.
- 10.11 Governing Law. This Agreement shall be construed under the laws of the State of California without regard to conflict of law principles, and by the laws of the United States, including federal



laws governing patent and other intellectual property rights, and the courts thereof shall have jurisdiction to hear any matter arising under or out of this Agreement. Unless otherwise advised by AUTHORIZED PRODUCER in writing to SUN WORLD, the execution, delivery and performance by AUTHORIZED PRODUCER and SUN WORLD of this Agreement will not conflict with or violate the laws of the Production Territory and no approval or filing with the government or any agency or instrumentality is required in connection with the execution delivery and performance of this Agreement.

- 10.12 Complete Agreement; Counterparts. This Agreement, including the attached Schedule and Annexes, contains the entire agreement between the Parties and supersedes any and all prior written or oral agreements between the Parties regarding the matters contained herein, unless otherwise noted in this Agreement. The Parties acknowledge that neither party, including any agent and/or attorney of any party, has made any promise, representation or other warranty whatsoever, expressed or implied, not contained herein concerning the subject matter hereof, to induce it to execute this Agreement. This Agreement shall not be changed and no provision in this Agreement shall be waived except by an agreement in writing signed by the Parties. The Parties agree that this Agreement can be alternatively executed, according to each Party's choice, by autographic or electronic signature in compliance with the Uniform Electronic Transaction Act (EUTA) and the Electronic Signature in Global and National Commerce Act (ESIGN). The second Party to sign will be free to choose the method it prefers, and the signature will be held valid by the other side, even if made with a different method. This Agreement may be executed in any number of counterparts and all such counterparts taken together shall be deemed to constitute one and the same instrument.
- 10.13 Survival of Provisions. It is agreed that the provisions under 2.4, 3, 4.2, 4.3, 4.4, 6.2, 7, 9.4, 10.5 and 10.10 shall survive this Agreement and shall remain in full force and effect and be binding upon the Parties even after the termination or expiry of this Agreement.
- 10.14 Annexes. The Schedule, Annexes and attachments to this Agreement, as well as any modifications thereof by SUN WORLD, as well as future Schedule, Annexes or attachments by SUN WORLD are part of this Agreement. If the Agreement and Schedule, Annex or attachment are contradictory, the Agreement shall prevail. A recent Schedule, Annex or attachment will be given preference over an older contradictory Schedule, Annex or attachment. All Schedules, Annexes and attachments must be approved in writing by SUN WORLD in order to be effective. Such approval shall be inferred when SUN WORLD provides the Schedule, Annex or attachment.

[SIGNATURE BLOCKS ON THE NEXT PAGE]



AGREEMENT NO: USPR23193
AGREEMENT DATE: 2025-08-11

IN WITNESS WHEREOF, this **PRODUCER PROPRIETARY PLANT LEASE AND LICENSE AGREEMENT** has been executed by the Parties as of the date first written below.

SUN WORLD INTERNATIONAL LLC,
a Delaware limited liability company

DATE: _____
(DD/MM/YYYY)

BY: _____
Siddharth Shah
ITS:

AUTHORIZED PRODUCER
ACGRMIX3 Company, LLC
a MN Limited Liability company

DATE: _____
(DD/MM/YYYY)

BY: _____

PRINT NAME: Alexandre Cirera

Title: Signer

E-mail: alexcirera@gmail.com

Mobile phone: +15106763110



AGREEMENT NO: USPR23193
AGREEMENT DATE: 2025-08-11

SCHEDULE 1

AUTHORIZED PRODUCER	ACGRMIX3 Company
PRODUCTION TERRITORY	United States of America California San Joaquin Valley
EFFECTIVE DATE	
ADDRESSES FOR NOTICES	SUN WORLD SUN WORLD INTERNATIONAL, LLC Attn: Legal Department 28994 Gromer Ave, Wasco, California 93280 (USA) Telephone #: (661) 631-4100 e-mail address: ipadmin@sun-world.com AUTHORIZED PRODUCER Name : ACGRMIX3 Company Attn : Alexandre Cirera Address : 14701 Charlson Rd, Eden Prairie, 55347, MN, United States Telephone : +15106763110 e-mail address : alexcirera@gmail.com



AGREEMENT NO: USPR23193
AGREEMENT DATE: 2025-08-11

ANNEX “A”
Sun World Cultivars/Sun World Trademarks

Fruit Type	Sun World Cultivar	Sun World Trademark	Propagation Fee	Fruit Fee % of F.O.B	Transition Date (DD-MM-YY)	Fee Upon Transition % of F.O.B
Nectarine	NE1648		US \$0.50	3% of FOB%		2% of FOB
Peach	PE1807		US \$0.50	3% of FOB%		2% of FOB

Note – The list of Sun World Cultivars listed in this Annex “A” shall be periodically revised and replaced as additional Leased Plants are planted.

F.O.B AND FRUIT FEE CALCULATION

The Fruit Fee payments specified in Article 5 and assessed on all Fresh Market Fruit sold by the Licensed Distributor, shall be calculated on the percentage listed above times the F.O.B. selling price received from the sale of the Fresh Market Fruit.

The F.O.B. selling price shall consist of the selling price received by the Licensed Distributor at shipping point and payable by the purchaser of the Fresh Market Fruit and shall not include:

- (a) any costs of palletization and pre-cooling; and
 - (b) any costs of packaging materials or related expenses;
- charged to the purchaser of the Proprietary Fruit.



1. Attach a map of land where plants will be grown and legal description.





AGREEMENT NO: USPR23193
AGREEMENT DATE: 2025-08-11



AGREEMENT NO: USPR23193
AGREEMENT DATE: 2025-08-11

2. Complete the table below.

AUTHORIZED PRODUCER: ACGRMIX3 Company

FARM NAME: Farm2 Family

PRODUCTION TERRITORY: United States

PROPERTY ADDRESS: 901 Charlson Rd, Eden Prairie, 55347, MN, United States

OWNER OF LAND: ACGRMIX4 Family

LEASED PLANTS PROPAGATION AND PLANTINGS										
RECEIVED FROM LICENSED NURSERY:										
Sun World Cultivar	Material/ Rootstock	Quantity Received	Date Received (DD-MM-YY)	Propagation Royalty		Date Planted (DD-MM-YY)	Spacing (ft)	Planted hectares	Land Registry	GPS Coordinates
				Per Unit Rate	Amount					
NE1648	110R	1,000		US \$0.50	US \$500.00	13-08-25	10 x 11	1.02	bcd	30.0000000/ 30.0000000
PE1807	110R	1,000		US \$0.50	US \$500.00	13-08-25	10 x 11	1.02	bcd	30.0000000/ 30.0000000

The undersigned AUTHORIZED PRODUCER or authorized representative thereof declares that the information above, particularly as related to “Quantity Received”, “Date Planted” and “Planted Hectares” is true and correct. Sun World reserves the right to verify the information provided by AUTHORIZED PRODUCER.

AUTHORIZED PRODUCER acknowledges that this Amendment shall be considered an addendum to this PRODUCER PROPRIETARY PLANT LEASE AND LICENSE AGREEMENT and shall be incorporated by reference into said Agreement.

Signed: _____

Authorized Producer



ANNEX “C”
Annual Plant Lease Report

Authorized Producer:	ACGRMIX3 Company
Former Agreement No., if applicable:	USPR23193
Agreement Title:	US PRODUCER PROPRIETARY PLANT LEASE AND LICENSE AGREEMENT – STONE FRUIT
Agreement Date:	2025-08-11
Report Date:	

The undersigned are parties to the aforementioned Agreement fully executed between Sun World International, LLC, a Delaware limited liability company (USA) (“Sun World”) and Authorized Producer. This Annual Plant Lease Report by this reference shall replace all previous versions, if any, of the Annual Plant Lease Report set forth in the Agreement.

<u>NEW PLANTINGS</u>		Quantity of Plants				Planted Area			Propagation Fee			Fruit Fee	
Variety and Fruit Type	Farm	Block	Rootstock	Allocated	Spacing (ft)	Ac	Received From	Date Planted (DD-MM-YY)	Rate	Total	Rate	Fee upon Transition	Plant Type
Nectarine NE1648	Farm2 Family	123	110R	1,000	10 x 11	2.53	Self Propagated	13-08-25	US \$0.50	500.00	3% of FOB	2% of FOB	COMM
Peach PE1807	Farm2 Family	123	110R	1,000	10 x 11	2.53	Self Propagated	13-08-25	US \$0.50	500.00	3% of FOB	2% of FOB	COMM

<u>EXISTING PLANTINGS</u>						Planted Area			Fruit Fee			
Variety and Fruit Type	Farm	Block	Rootstock	Quantity of Plants	Spacing (ft)	Ac	Received From	Date Planted (DD-MM-YY)	Rate	Fee upon Transition	Plant Type	

Additional Comments: Reason for Land Changes /Leased Plant Removal:



AGREEMENT NO: USPR23193
AGREEMENT DATE: 2025-08-11

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AGREEMENT NO: USPR23193
AGREEMENT DATE: 2025-08-11

Please update contact information

Existing Contact Information		Changes to Contact Information, if applicable
Contact:	Alexandre Cirera	
E-mail:	alexcirera@gmail.com	
Address 1:	14701 Charlson Rd	
Address 2:		
Address 3:		
City, State, Code	Eden Prairie, MN,	
Telephone	+1 5106763110	
Fax, if applicable		

Except as specifically changed in this Annual Plant Lease Report, all terms and conditions of said Agreement shall remain in full force and effect and all terms defined in said Agreement shall have the same meaning when used in this document.

IN WITNESS WHEREOF, the Parties acknowledge and confirm this Annual Plant Lease Report has been executed by the Parties as of the effective date first written above.

“SUN WORLD”

SUN WORLD INTERNATIONAL, LLC
A limited liability company registered in the
State of Delaware in the United States

Name: Siddharth Shah
Its:

By: _____

Date: _____

I acknowledge that the information in this document is accurate to the best of my knowledge.

“AUTHORIZED PRODUCER”

ACGRMIX3 Company, LLC
A MN Limited Liability company.

Name: Alexandre Cirera
Its: Signer

By: _____

Date:



AGREEMENT NO: USPR23193
AGREEMENT DATE: 2025-08-11



AGREEMENT NO: USPR23193
AGREEMENT DATE: 2025-08-11

ANNEX "D"
Quality Specifications



BLACK
DIAMOND[®] brand
A SWEET, RED FLESH PLUM
by Sun World



QUALITY SPECIFICATIONS

BLACK DIAMOND[®] brand plums

scope

These specifications apply to red-fleshed black plums designated by Sun World as a “BLACK DIAMOND[®]” series plum) on the Sun World International, LLC website: [BLACK DIAMOND Plum Varieties](#).

These plums are marketed by Sun World and its licensees as BLACK DIAMOND[®] brand plums. The purpose of these specifications is to define the *minimum* requirements and tolerances. Sun World may amend these specifications to meet governmental or market requirements.

**general
description**

BLACK DIAMOND plums are large and firm with black skin and pink-to-red flesh and have been developed to have juiciness and mildly-sweet flavor that is superior to other plums of the season.

label

The label must clearly identify the variety with the appropriate varietal name (i.e., Suplumeleven, Suplumtwentythree) and include the BLACK DIAMOND[®] brand. See below for a sample label.

application

These minimum specifications apply to packed plums at shipping point.

characteristics

BLACK DIAMOND plums shall meet or exceed European Union (“EU”) Class 1, United States Department of Agriculture (“USDA”) No. 1 standards, or the highest standards established for fresh plums in the market where the plums are to be sold to consumers. EU Marketing Standards for Plums can be found at: [EU Plum Standards](#). USDA Marketing Standards for Plums can be found at: [USDA Plum Standards](#).

However, since it is Sun World's intent for all BLACK DIAMOND production to achieve a higher quality standard than governmental standards, these Sun World Quality Specifications shall apply:



maturity

COLOR:

For fruit destined to markets within 7 days of harvest:

At harvest, the interior and exterior color of BLACK DIAMOND plums should be equal to or darker than the photos designated as ‘acceptable’ or ‘ideal’ in the accompanying BLACK DIAMOND maturity chart.

For fruit designated for markets more than 7 days after harvest:

Flesh color should show at least a trace of red in the internal flesh, and the external skin color should be light red.

PRESSURE:

BLACK DIAMOND plums shall be firm but shall have spring enough to yield to gentle pressure. BLACK DIAMOND plums shall **not** be picked at **more** than 7 Kg of pressure using an 11mm penetrometer (South African) or more than 8 lbs of pressure using an 8mm penetrometer (U.S./Chile). BLACK DIAMOND plums should not be picked at **less** than 6.5 Kg of pressure using the South African-style penetrometer or less than 6 lbs of pressure using the U.S./Chilean penetrometer. Higher pressures are recommended if fruit is to be in transit for over 15 days.

SUGAR:

Minimum brix shall be 12⁰. Sugar requirements for some markets may vary but optimal flavor is achieved with sugar levels of 17⁰ brix and higher.

SIZE

For fruit sent to the E.U., the minimum size for BLACK DIAMOND plums is E.U. size “B” (45-50mm diameter when measured from the center of the plum, perpendicular to the suture).

For fruit sent to the U.S., the minimum size is size “60” as determined by the California Plum Marketing Board (2004) or not less than 55mm in diameter (equivalent to E.U. size AA). California size “60” signifies that a maximum of 60 pieces of fruit would constitute a 10-pound sample. For further information on plum sizes, see page 18 of the California Plum Marketing Board 2004 Bulletin at the attached link. http://www.eatcaliforniafruit.com/growers-shippers/reports-bulletins/pdf/2004_Plum_Bulletin.pdf

shape

BLACK DIAMOND plums shall be uniformly round with smooth skin.

cartons

BLACK DIAMOND plums must be packed in standard industry cartons. Plums must not be packed in cartons which are damaged or which have illegible, indistinct or incorrect graphics or inaccurate labeling. All cartons must be well sealed and correctly marked as to size.



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SAMPLE BLACK DIAMOND LABEL FOR SUPLUMFORTYONE PLUMS

"BLACK DIAMOND® (cv. Suplumfortyone) brand plums, grown, distributed, and sold under license from Sun World International, LLC."

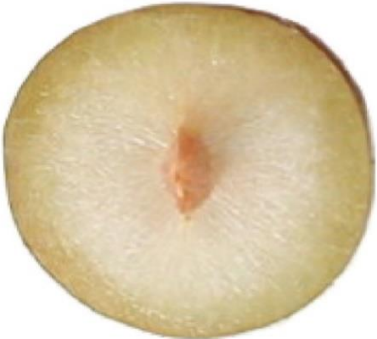
"BLACK DIAMOND® is a trademark of Sun World International, LLC. and unauthorized use is an infringement of the trademark rights.

"BLACK DIAMOND® brand plums are produced from cv. Suplumfortyone trees that are the exclusive personal property of Sun World International, LLC. U.S and foreign plant patent/plant variety rights are granted or pending, including U.S. Plant Patent PP22430. Asexual reproduction of the patented plants without license is strictly prohibited. BLACK DIAMOND® is a registered trademark of Sun World International, LLC in the USA and various other countries."



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BLACK DIAMOND[®] Maturity Chart

	Immature 	
	Acceptable 	
	Ideal 	

Notice: Sun World proprietary variety. Propagation materials are only available under license to qualified organizations.
Variety performance will vary depending on region and cultural practices

© 2003 Sun World International, Inc.



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ANNEX "E"
Licensed Nurseries and Licensed Distributors

Licensed Nurseries

Sierra Gold Nurseries, Inc.

Licensed Distributors

Dayka Hackett



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ANNEX "F"
Estimated Production Worksheet

DATE: _____

TO: SUN WORLD
LICENSED DISTRIBUTOR

DUE: 45 days before harvest

PRODUCTION ESTIMATES

SUN WORLD CULTIVAR	TOTAL NO LEASED PLANTS	PLANTING YEAR	ESTIMATED PRODUCTION		
			Year:	Year:	Year:

AUTHORIZED PRODUCER

BY: _____

PRINT NAME: _____

TITLE: _____



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ANNEX "G"
Agreement Regarding Leased Plants

SAMPLE – NOT FOR EXECUTION

RECORDING REQUESTED BY
AND WHEN RECORDED RETURN TO:

Sun World International, LLC
28994 Gromer Ave,
Wasco, California 93280 (USA)
Attention: IP Manager

Land Identifier (for example in US APN):

AGREEMENT REGARDING LEASED PLANTS

This Agreement Regarding Leased Plants (“Agreement”) is executed as of [*insert date*], by and among **Sun World International, LLC**, a Delaware limited liability company (“SUN WORLD”), ACGRMIX3 Company (“AUTHORIZED PRODUCER”), ACGRMIX4 Family (“Landlord”), and (“Lender”).

Recitals

A. SUN WORLD is the owner of all personal, equitable, confidential and proprietary property rights to certain plant cultivars, including without limitation any buds, scions, tissues, plants (including without limitation the Leased Plants), propagating materials, sports, stocks, mutants and progeny that are comprised of or incorporate such plant cultivars, and any subsequent asexual propagating materials arising from the growth or culture of any of the foregoing (including but not limited to prunings) (collectively, the “Sun World Cultivars”).

B. SUN WORLD has leased certain vines/trees that are included within the definition of the Sun World Cultivars (the “Leased Plants”) to AUTHORIZED PRODUCER for the sole and exclusive purpose of planting and growing the Leased Plants on that certain real property legally described on Annex “1”, (the “Land”), and harvesting, selling or otherwise providing all of the fruit produced from the Leased Plants (the “Proprietary Fruit”) to a distributor licensed by SUN WORLD. The lease of the Leased Plants by SUN WORLD to AUTHORIZED PRODUCER is set out in the Producer Proprietary Plant Lease and License Agreement dated [*insert date*] (the “Plant Lease”).

C. [AUTHORIZED PRODUCER is the tenant of the Land pursuant to a lease agreement between Landlord as landlord and AUTHORIZED PRODUCER as tenant [*give recording data of any memo of lease*] (the “Land Lease”).]

D. Lender is the mortgagee or beneficiary of that certain mortgage or deed of trust encumbering the Land, which was recorded on [*give recording date of any mortgage*] (the “Mortgage”). The Mortgage secures a loan from Lender to [AUTHORIZED PRODUCER or Landlord]. The Mortgage and all other documents securing such loan are collectively referred to as the “Security Documents”).



E. In order to obtain the consent of SUN WORLD to planting and growing the Leased Plants on the Land, the other parties to this Agreement desire to confirm the title of SUN WORLD to the Leased Plants before and after they are planted on the Land and provide agreements governing the disposition of the Leased Plants in the event AUTHORIZED PRODUCER's right of possession of the Land expires or terminates.

Agreement

1. Incorporation of Recitals. The Recitals set forth above are hereby incorporated into this Agreement and made a part hereof.

2. Leased Plants are the Personal Property of SUN WORLD. The Leased Plants are the sole and exclusive personal property of SUN WORLD, both before and after they are planted on the Land. SUN WORLD retains the sole right to direct the disposition of the Leased Plants, including at its option, their removal, all on the terms and conditions set forth in the Plant Lease. AUTHORIZED PRODUCER (subject to the Plant Lease), [Landlord,] and Lender hereby disclaim, release and quitclaim to SUN WORLD any and all right, title, property interest and security interest in and to the Leased Plants, which disclaimer, release and quitclaim shall be a continuing covenant and shall apply to any and all Leased Plants planted on the Land at any time. The Leased Plants shall remain the personal property of SUN WORLD and shall not become attached to or a part of the real property or become a fixture affixed to the real property, notwithstanding their being planted on the real property or their continuance there for an extended period of time. [Landlord and] Lender agree that no property or security interest shall attach to the Leased Plants under the [Land Lease or the] Security Documents. No property interest shall arise in either party [by the expiration, termination, abandonment or surrender of the Land Lease or] by the foreclosure, deed in lieu of foreclosure or sale under the Security Documents of the Land, and no action by either party to enforce its rights shall compromise, affect or disturb SUN WORLD's personal property rights in the Leased Plants. AUTHORIZED PRODUCER acknowledges that its only rights to the Leased Plants are those granted to it by SUN WORLD in the Plant Lease and are subject to all covenants, conditions, restrictions, and rights of termination set forth in the Plant Lease.

3. Upon Termination of AUTHORIZED PRODUCER's Possession. In the event that AUTHORIZED PRODUCER's right to possession of all or any portion of the Land expires or terminates for any reason, then from such termination of possession until all Leased Plants located on or beneath that part of the Land have been destroyed and removed by SUN WORLD or by any other party with SUN WORLD's permission: (a) [Landlord,] Lender, any purchaser at a foreclosure sale or purchaser from Lender, any successor or assign of any of them, and any trustee in bankruptcy, receiver, custodian or other party appointed to protect such party or its creditors (any of them being referred to herein as a "Party in Possession") of the Land) shall not, and shall not permit any other person or entity to, propagate, top work, graft or reproduce any of the Leased Plants located on that part of the Land; (b) unless the Party in Possession has entered into a license agreement with SUN WORLD (the terms of which shall be subject to agreement in the sole and absolute discretion of SUN WORLD and the Party in Possession), the Party in Possession shall not at any time produce, market, export, deal, dispose, sell, transfer, give away or assign any of the Leased Plants or Proprietary Fruit located on or produced from that part of the Land; (c) the Party in Possession shall ensure that any and all cuttings resulting from any pruning of any of Leased Plants and any material from the Leased Plants that remains on the Land shall be destroyed and removed in accordance with SUN WORLD's instructions; and (d) the Party in Possession shall permit SUN WORLD, at SUN



WORLD's sole expense, to take such reasonable security precautions with respect to the Leased Plants located on that part of the Land as SUN WORLD may elect to take, provided that such security precautions do not materially interfere with any operations of Party in Possession.

4. Enforcing Removal of the Leased Plants. If, within ninety (90) days after the end of AUTHORIZED PRODUCER's possession of all or any part of the Land, the Party in Possession and SUN WORLD have not entered into a license agreement to permit the continued cultivation of the Leased Plants on the Land, and SUN WORLD or other party with its permission has not removed the Leased Plants from the Land, then the Party in Possession may (i) instruct SUN WORLD by written notice to remove all Leased Plants from the Land or portion thereof in the possession of the Party in Possession at the sole cost and expense of SUN WORLD, which obligation may be enforced by an action for specific performance of SUN WORLD's obligation to do so, or (ii) remove and destroy or cause the removal and destruction of the Leased Plants from the Land or the portion thereof in the possession of the Party in Possession at the cost and expense of SUN WORLD, which shall reimburse the Party in Possession for the costs of the removal and destruction within thirty (30) days of delivery of an invoice containing a specific breakdown of costs, provided that the Party in Possession has (a) delivered SUN WORLD not less than ten (10) days' written notice of the Party in Possession's intention to remove and destroy the Leased Plants, (b) the Party in Possession or other person entering the Land at its invitation has performed the removal and destruction work in compliance with any instructions provided by SUN WORLD, and (c) the removal and destruction work resulted in the destruction of the Leased Plants and all parts of them so that no Sun World Cultivars could be propagated therefrom.

5. Further Assurances. The parties to this Agreement shall execute and deliver all documents reasonably requested by SUN WORLD to acknowledge SUN WORLD's personal property and intellectual property rights in and to the Leased Plants and Sun World Cultivars and to grant SUN WORLD a security interest in the Leased Plants and/or the Land. Further the Landlord and Lender irrevocably grant SUN WORLD consent and authority to enter the Land at any time to undertake the rights set out in the Plant Lease, including the right to inspect the Leased Plants, any records relating to the Leased Plants and to remove or destroy the Leased Plants. [If Landlord hereafter sells, mortgages or otherwise encumbers the Land, then Landlord shall notify SUN WORLD in writing within thirty (30) days and cause the new landowner, mortgagee or beneficiary to execute an agreement substantially in the form of this one.]

6. Limitation on Assignment. AUTHORIZED PRODUCER agrees that it shall not [assign any interest in the Land Lease/sell any interest in the Land] unless and until (a) the prospective purchaser or assignee has assumed the duties and obligations under the Plant Lease or executed a new Producer Proprietary Plant Lease and License Agreement with SUN WORLD that is substantially similar to the Plant Lease, or (b) the AUTHORIZED PRODUCER proves to the reasonable satisfaction of SUN WORLD that the Leased Plants have been destroyed.

7. Limitation on Liability. Except as specifically provided in this Agreement or applicable law, [Landlord and] Lender shall not, by virtue of this Agreement, the Mortgage, [the Land Lease] or any other instrument to which they may be a party, be or become subject to any liability or obligation to SUN WORLD.

8. General. This Agreement may not be modified or terminated orally. This Agreement shall inure to the benefit of and be binding upon the parties hereto and their successors and assigns. The term "Lender" shall mean the then holder of any interest in the Security Documents. [The term "Landlord" shall mean the



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then holder of the lessor's interest in the Land Lease.] The term "person" shall mean any individual, joint venture, corporation, partnership, trust, unincorporated association or other entity. This Agreement shall be interpreted in accordance with its fair meaning and not for or against any party bound or which drafted this Agreement. This Agreement shall be governed by and construed in accordance with the substantive laws of location of the Land. This Agreement may be executed in any number of counterparts, each of which shall be deemed to be an original and all of which when taken together shall constitute one and the same Agreement. This Agreement shall be effective when a fully executed and acknowledged original of this Agreement is delivered to SUN WORLD.



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SUN WORLD:

Sun World International, LLC,
a Delaware limited liability company

By: _____

Name: Siddharth Shah

Title:

Date: _____

AUTHORIZED PRODUCER:

ACGRMIX3 Company, LLC
a MN Limited Liability company

By: _____

Name: Alexandre Cirera

Title: Signer

Date: _____

Lender:

a _____

By: _____

Name:

Title:

Landlord:

ACGRMIX4 Family LP,
a Limited Partnership company

By: _____

Name: Alexandre Cirera

Title: Signer



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ANNEX “1”
Legal Description of the Land

test2



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ANNEX "H"
Notice to Employees and Contracted Vendors

TO: **ALL EMPLOYEES AND CONTRACTED VENDORS**
FROM: **ACGRMIX3 Company, LLC**

SUBJECT: **SUN WORLD INTERNATIONAL, LLC ('SUN WORLD') CULTIVARS**
PRUNING AND HANDLING PRACTICES FOR PROPRIETARY CULTIVARS

As you may know, ACGRMIX3 Company (the "COMPANY") has recently signed a Producer Proprietary Plant Lease and License Agreement with SUN WORLD, a California breeder, grower, and marketer of proprietary grape, apricot, nectarine, peach, and plum cultivars ("Sun World Cultivars"). As a result of this Agreement, the COMPANY will be providing producing Sun World Cultivars. Below is SUN WORLD'S policy relative to protecting its proprietary cultivars and the plant materials that comprise them. The following standard procedures have been adopted as COMPANY policy:

1. Prior to disking, shredding and/or burning the pruned material, all such plant material shall remain on COMPANY property. When burned or shredded and disked, no material may be burned or shredded and disked on property other than the COMPANY's. If pruned plant material requires drying, the authorized ranch manager, operations supervisor or contracted vendor shall be responsible for ensuring that all such plant material remains on COMPANY property and that such material shall be reasonably protected from theft.
2. No plant material — whole, disked, shredded or otherwise — shall leave the COMPANY's property or premises for any reason whatsoever, unless otherwise first authorized in writing by a COMPANY officer. If, during the shredding or burning process, any plant material is processed and inadvertently cast from the COMPANY's property, the ranch manager, operations supervisor or contracted vendor shall be responsible for ensuring that all such plant material is promptly retrieved and returned to the COMPANY's property.
3. All contracted vendors and their employees are subject to and agree to abide by this policy. As a condition for providing services to the COMPANY, the contracted vendor shall provide the COMPANY with written proof that their employees have been notified of these procedures.
4. As an added precaution, and to remove any doubt about property lines, COMPANY property shall be defined as that property on which trees and vines are planted and extending to within 10 feet of the edge of any public road or third-party property line.

Intentional or inadvertent dissemination of any Sun World Cultivar material (trees, budwood), before, in connection with or after the pruning process, is strictly prohibited. All employees are expected to comply fully with these pruning and plant material care practices; please indicate that you understand and accept these conditions below.

If you have any questions about these practices, please contact your immediate supervisor or COMPANY contact immediately.

I UNDERSTAND AND ACCEPT THE CONDITIONS SET FORTH ABOVE:

By: _____ Date: _____